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State Bill Prohibiting School Food with Synthetic Dyes Moves to a Vote Next Week

August 8, 2024 | San Fernando Valley Sun, The (CA)
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OpenURL Link

California Assembly Bill (AB) 2316, which would prohibit public schools from serving foods containing six additives linked to health harm in children, will be voted on in the Senate Appropriations Committee next week.

If the bill, otherwise known as the California School Food Safety Act, passes the committee vote on Thursday, Aug. 15, it will go to the State Senate. It will then have two weeks to get a majority vote before it can reach Gov. Gavin Newsom's desk.

AB 2316 targets six synthetic food dyes: red dye No. 40, yellow dye No. 5, yellow dye No. 6, blue dye No. 1, blue dye No. 2 and green dye No.3.

A 2021 report by the California Environmental Protection Agency found these food dyes are associated with hyperactivity, inattentiveness and restlessness in sensitive children, both with and without pre-existing behavioral disorders.

These dyes can be found in a variety of foods, including cereals, yogurt, sodas, fruit juices and baked goods. Examples include Froot Loops, Lucky Charms, Doritos, Pillsbury Toaster Strudel pastries and M&Ms.

In the European Union, products containing these dyes are required to carry a warning label about their potential harm to children. In the United States, however, all six dyes have been approved by the Food and Drug Administration (FDA).

Assemblymember Jesse Gabriel, author of AB 2316, said the FDA research that allowed these chemicals to be used in food is at least 35 years old and is "insufficient" in protecting children. Gabriel added that the dyes have a pronounced impact on youth with attention deficit hyperactivity disorder (ADHD), which he and one of his children have struggled with.

"We have a responsibility to make sure that the food that we serve [children] in our public schools is not going to harm them and it's not going to interfere with their ability to learn and that's what this bill would do," Gabriel said. "We believe very strongly that protecting the health and safety of our kids should not be a partisan issue. It is a common sense issue."

Titanium dioxide, a coloring agent that can damage a person's DNA, was also included in the bill when it was unveiled in March but has since been removed. Gabriel explained that its inclusion caused opposition from dairy farmers – the chemical is used in dairy products to make them look whiter and brighter – and it was removed to gain more bipartisan support.

AB 2316 is Gabriel's second bill targeting harmful chemicals in processed foods and drinks. The California Food Safety Act, signed into law in October 2023, prohibits the manufacture, sale or distribution of any food product in California containing red dye No. 3, potassium bromate, brominated vegetable oil or propylparaben.

Since then, 10 other states have introduced similar legislation to ban chemicals in food, including Missouri, Maryland, New York, Pennsylvania and Washington.

John Hewitt, senior vice president of packaging and sustainability and state affairs for the Consumer Brands Association, issued a statement that said the U.S. and global food safety agencies have concluded that the six dyes do not cause adverse neurobehavioral effects in children and AB 2316 ignores existing science.

"The legislation could also cost schools and families money," Hewitt said. "AB 2316 sets a dangerous precedent for state politicians to substitute their own views on food safety ahead of the scientists and risk-based review system that stringently protects America's food supply."

State Superintendent of Public Instruction Tony Thurmond, however, argued that any financial cost wouldn't be as great as the cost of inaction. In a nation with high rates of obesity, asthma, heart disease and diabetes, he said, this is a step towards making kids eat healthier.

"Our kids, since the pandemic, have experienced a higher rate of [negative] behaviors – the whole world has – so why wouldn't we take action that we know is proven to help our students be successful," Thurmond said. "In the meantime, we can support California farmers and others who grow healthy food … that our kids can eat."

Lesley-Ann Brandt, an actress and advocate for food safety, saw the importance of healthy eating in her younger brother, who had severe ADHD. Their mother paid close attention to the ingredients in the food they were eating, which Brandt said had a positive impact on her brother's performance in school and confidence.

Brandt explained it's self-defeating to provide children with resources but then expose them to harmful chemicals during lunch. In her hometown of Cape Town, South Africa, she said children learn about mindfulness and the importance of healthy eating.

"We teach them about nurturing your mind but also your body and how those two things are interlinked," Brandt said. "When you help one child in the classroom, you're essentially helping all of these kids and taking the pressure off of our health care system."

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- **Citation (apa Style)**
  Arizon, G. (2024, August 8). State Bill Prohibiting School Food with Synthetic Dyes Moves to a Vote Next Week*San Fernando Valley Sun, The (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19AD4F240B4ADE80.